

FICTIONAL EXAMPLE — the address, companies, register entries, dates and figures in this sample are invented to show the report format. They do not describe any real property or business.

14 Market Row, Example Town XX1 1XX (fictional)

What the listing claims, checked against the public record. Every finding keeps apart what a record says, what it could mean, and what to ask.

Listing checked	“Restaurant lease for assignment — Market Row” (fictional listing)
Asking terms (as listed)	£32,000 pa passing rent · £45,000 premium incl. fixtures and equipment · assignment of a 10-year lease said to run from November 2023
Use tested	Restaurant serving alcohol, with a full cooking kitchen
Local authority	Example Town Council (fictional)
Report type	Fictional sample showing the report format.

At a glance

The listing presents a licensed restaurant with planning for extraction and a lease ready to assign. The record supports the restaurant use, the hygiene history and the rateable value. Two claims are contradicted by the record: the **premises licence** was held by a company that has since been **dissolved**, with no transfer recorded, and the planning register shows the **external flue was refused**, with no later consent. Nothing public shows who the tenant under the lease is, and no energy certificate was found.

Verdict on the evidence

Do not rely on the licence or the extraction as described. Before paying the premium, get written answers to these three questions:

1. Who is the tenant named in the lease, and who is assigning it?
2. Was the premises licence transferred, or an interim authority notice given, within 28 days of the holder’s dissolution? If not, budget for a new licence.
3. Which consent covers the kitchen extraction now installed, given the 2019 refusal?

3

Confirmed by a primary record

2

No independent record found

2

Record contradicts the claim

An agent’s own claim never counts as confirmation of itself. Where we could not confirm something, we say so rather than fill the gap.

Findings

1. Lease “available for assignment”

No record found

“Lease available by way of assignment” · “10-year lease from November 2023”

EVIDENCE

- Companies House: **Fictional Kitchen Co Ltd** (fictional) has its registered office at the property and declares its business as licensed restaurants. Incorporated **2 February 2024**, three months after the lease start date in the listing. [S1]
- Filing history: application to strike off filed **18 February 2026**; first Gazette notice **3 March 2026**; company **dissolved 26 May 2026**. No liquidation or administration notices. [S1, S2]

INTERPRETATION

The lease may have been granted to someone else, for example the founders personally. If it was held by the dissolved company, it is not simply “available for assignment”: a dissolved company’s property, including leasehold property, passes to the Crown as *bona vacantia* (Companies Act 2006, s.1012) [S6].

ACTION

Ask for the tenant’s full name exactly as it appears in the lease, and a copy of the lease. A lease of more than seven years is normally registered at HM Land Registry, where the title shows the registered tenant.

2. “Fully licensed restaurant”

Contradicted

“Fully licensed restaurant” · “alcohol licence in place”

EVIDENCE

- Council licensing register: premises licence **FIC/24/01234/PREM** (fictional), granted **14 June 2024** to Fictional Kitchen Co Ltd. Sale of alcohol 11:00–22:30 daily. Register status still shows “Current”. [S3]
- The holder was dissolved on 26 May 2026 (finding 1). No transfer or interim authority notice appears on the register since. [S1, S3]

INTERPRETATION

A premises licence lapses when its holder, being a company, is dissolved (Licensing Act 2003, s.27), unless within 28 days someone with an interest in the premises gives an interim authority notice (s.47) or applies for a transfer (s.50) [S7, S8, S9]. None appears on the register. Unless one was made and not yet published, the licence has lapsed and the register’s status has not been updated.

ACTION

Ask for proof of any transfer or interim authority notice. If there is none, plan for a new premises licence application before opening with alcohol.

3. Restaurant use

Confirmed

Listing: "A3 restaurant premises"

EVIDENCE

- Planning register: **FIC/12/0456/F** (fictional), granted 2012 — change of use to restaurant (then Class A3). Condition: no customers on the premises outside 07:30–23:00. [S4]
- Class A3 was revoked in England on 1 September 2020; restaurant use now falls within Class E(b). [S10]

INTERPRETATION

Restaurant use has consent, so "A3" is an out-of-date label rather than a wrong one. The hours condition rules out a late-night concept without a new application.

ACTION

Check your planned hours against the 23:00 condition before agreeing terms.

4. Kitchen extraction

Contradicted

"Extraction in place, planning granted"

EVIDENCE

- Planning register: **FIC/19/0789/F** (fictional), application for an external extract flue to the rear elevation — **refused** in 2019 on odour and residential-amenity grounds. [S4]
- No later application for extraction, flue or ventilation equipment appears for the address. [S4]

INTERPRETATION

The record shows a refusal, not a grant. If an external flue has been installed since, it may lack planning permission and could be subject to enforcement.

ACTION

Ask for the planning reference that permits the current extraction, or written confirmation of how the kitchen is ventilated.

5. Food hygiene record

Confirmed

Supporting record (not a listing claim): food business trading at the address

EVIDENCE

- Food hygiene rating: **3 — Generally satisfactory**, inspected 9 April 2025 (fictional entry). [S5]

INTERPRETATION

Confirms restaurant trading in 2025. The rating belongs to the previous operator and does not pass to a new one.

ACTION

A new operator must register the food business with the council at least 28 days before trading. [S11]

6. Rateable value

Confirmed

"Rateable value: £18,250"

EVIDENCE

- Valuation Office list: rateable value **£18,250** from 1 April 2026 (fictional entry). [S5]

INTERPRETATION

Matches the listing. The rateable value is not the rates bill; any relief depends on the occupier.

7. Energy certificate

No record found

"EPC rating: C"

EVIDENCE

- Energy certificate register: no non-domestic certificate found for the address (fictional search result). [S5]

INTERPRETATION

Without a valid certificate the claim cannot be checked. Since 1 April 2023 a privately rented non-domestic property generally needs at least an E rating, unless a valid exemption is registered. [S12]

ACTION

Ask for the certificate reference number and check it on the government register.

Timeline from the record

2012	Restaurant use granted (FIC/12/0456/F); customers off the premises by 23:00.	S4
2019	External extract flue refused (FIC/19/0789/F).	S4
Nov 2023	Lease starts (as stated in the listing).	—
2 Feb 2024	Fictional Kitchen Co Ltd incorporated; registered office at the property.	S1
14 Jun 2024	Premises licence FIC/24/01234/PREM granted to the company.	S3
9 Apr 2025	Food hygiene inspection: rating 3.	S5
18 Feb 2026	Application to strike the company off.	S1
1 Apr 2026	Rateable value £18,250 takes effect.	S5
26 May 2026	Company dissolved. No licence transfer or interim authority notice recorded.	S1, S3
Sep 2026	Lease marketed for assignment at a £45,000 premium.	—

Questions to put to the agent

1. Who is the tenant named in the lease, and who is the assignor?
2. Was the premises licence transferred, or an interim authority notice given, within 28 days of the company's dissolution? Please send the council's acknowledgement.
3. Which planning permission covers the extraction now installed, given the 2019 refusal?
4. What exactly does the £45,000 premium buy, and who owns the equipment?
5. Has the landlord confirmed in writing that it will consent to an assignment, and on what terms?
6. What is the energy certificate reference number?

Documents to request

- The lease, and any rent deposit deed or guarantee
- The premises licence, its plan and conditions, and any transfer or interim authority notice
- Planning decision notices for the use and for the extraction
- An inventory of the equipment included in the premium, with proof of ownership
- The landlord's written position on consent to assign
- The energy performance certificate

What this report is not

It is not legal, planning, licensing or surveying advice, and it is not a substitute for a solicitor or a survey. It does not guarantee that the property is suitable or that any permission will be granted. It reflects the public record as it stood on the date above; records change, and gaps in them are reported as gaps. Legal provisions are cited so you can check them, not as advice on how they apply to this property.

Sources (sample — register entries are fictional; legislation links are real)

- | | |
|----|---|
| S1 | Companies House — company record (fictional company, illustrative)
https://find-and-update.company-information.service.gov.uk/ |
| S2 | The Gazette — insolvency and strike-off notices (illustrative)
https://www.thegazette.co.uk/ |
| S3 | Council premises licence register (fictional entry, illustrative)
https://www.gov.uk/guidance/beer-licensing |

S4	Council planning register (fictional entries, illustrative) https://www.planning.data.gov.uk/
S5	FSA ratings, VOA list and EPC register (fictional entries, illustrative) https://ratings.food.gov.uk/
S6	Companies Act 2006, s.1012 (property of dissolved company bona vacantia) https://www.legislation.gov.uk/ukpga/2006/46/section/1012
S7	Licensing Act 2003, s.27 (lapse of premises licence) https://www.legislation.gov.uk/ukpga/2003/17/section/27
S8	Licensing Act 2003, s.47 (interim authority notices) https://www.legislation.gov.uk/ukpga/2003/17/section/47
S9	Licensing Act 2003, s.50 (transfer following death etc. of holder) https://www.legislation.gov.uk/ukpga/2003/17/section/50
S10	Use Classes (Amendment) (England) Regulations 2020, SI 2020/757 https://www.legislation.gov.uk/uksi/2020/757/made
S11	GOV.UK — Food business registration https://www.gov.uk/guidance/food-business-registration
S12	GOV.UK — Non-domestic minimum energy efficiency standard (landlord guidance) https://www.gov.uk/guidance/non-domestic-private-rented-property-minimum-energy-efficiency-standard-landlord-guidance